Medical Case Management
Camp Lincoln, Springfield, Illinois

1. This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued. This solicitation, W91SMC-21R-0003, is issued as a Request for Proposal (RFP), for a single Firm Fixed Price (FFP) 8(a) set a side contract for NAICS 541990. This is anticipated to be awarded to the business concern through the procedures of Federal Acquisition Regulation (FAR) Part 13. The quotation shall be evaluated on the basis of best value. All vendors must have a registered cage code in order to be considered.

2. Provision 52.212-1 Instructions to Offerors- Commercial still applies to this acquisitions as well as the addenda utilized in full text.

3. A completed copy of provision 52.212-3 Offeror Representations and Certifications-Commercial Items is required with offeror's proposal.

4. Quotes shall be submitted prior to the closing date and time of **8 March 2021 at 2:30 PM CST**. Send quotes to the following: MAJ Jennifer Welker at Jennifer.l.welker5.mil@mail.mil and MAJ Mark Williams at mark.r.williams1.mil@mail.mil.

5. All questions regarding this RFQ shall be submitted in writing via email to: Jennifer.l.welker5.mil@mail.mill and mark.r.williams1.mil@mail.mil. All questions are due by **25 February 2021 by 2:30 PM CST.** The government is not obligated to provide responses.

Section SF 1449 - CONTINUATION SHEET

STATEMENT OF WORK

PERFORMANCE WORK STATEMENT (PWS)
FOR
NONCLINICAL CASE MANAGEMENT SERVICES
ILLINOIS ARMY NATIONAL GUARD (ILARNG)

1.0 General:

1.1 Scope: This is a service contract to provide Medical Non-Clinical Case Management and administrative care coordinator staffing in support of Individual Medical Readiness (IMR). The contractor shall manage a Soldier's care from the identification of the medical readiness condition to when the Soldier is either considered medically ready for deployment or administratively separated from the military. The level of IMR support will vary between brigades based on the Soldier's characteristics makeup such as age, health conditions, and duty status. The Government anticipates a new contract award that shall provide adequate staffing to meet the current needs. The contractor shall provide all personnel, equipment, tools, materials, supervision, and quality control necessary, except as specified in Paragraph 3.0 as Government Furnished, to perform Nonclinical Case Management Services**,** as defined throughout this PWS.

1.2 Background: The Government requires medical non-clinical case management in accordance with the Defense Health Agency (DHA) Procedural Instruction, number 6025.20. The ILARNG consisted of 5 brigades that require IMR support. The ILARNG Surgeon's Office requires the support in order to assist the Medical Branch to fulfill its annual mission.

1.3 Period of Performance (PoP): The Period of Performance shall be 1 Base Year of 12 months and four 12-month option years.

1.4 General Information:

1.4.1 Place and Performance of Services: The contractor shall provide services between the hours of 0800-1630 on Monday through Friday except on recognized US holidays or when the Government facility/installation is closed due to local or national emergencies, administrative closings, or similar Government-directed facility/installation closings. Primary performance shall be at Building 01 Adjutant General Office (AGO), 1301 North MacArthur Blvd, Springfield, Illinois 62702-2317. The contractor shall at all times maintain an adequate work force for the uninterrupted performance of all tasks defined within this PWS when the Government facility/installation is not closed for the above reasons. When hiring personnel, the contractor shall keep in mind that the stability and continuity of the work force are essential. Travel to and from the primary worksite shall not be reimbursed.

1.4.1.1 Telework: Telework is not permitted by the contractor unless determined to be necessary in order to protect the health and safety of the employees, such as a national pandemic, in order to continue to meet mission requirements. In furtherance of Continuity of Operations Planning (COOP), a telework program may be enacted to ensure that the Government's mission-critical operations stay operational during times of national emergency, incidents of national significance or the safety and wellbeing of the full-time staff on post is at risk. During those incidents, the contractor shall allow temporary telework under guidance prescribed by the Adjutant General. Contractors shall coordinate and request approval with the COR prior to teleworking. Telework shall be at no additional cost to the Government.

1.4.1.2 Unscheduled gate closures by the Security Police may occur at any time causing all personnel entering or exiting a closed installation to experience a delay. This cannot be predicted or prevented. Contractors are not compensated for unexpected closures or delays. Vehicles operated by contractor personnel are subject to search pursuant to applicable regulations. Any moving violation of any applicable motor vehicle regulation may result in the termination of the contractor employee’s installation driving privileges.

1.4.1.3 The contractor’s employees shall become familiar with and obey the regulations of the installation; including fire, traffic, safety and security regulations while on the installation. Contractor employees should only enter restricted areas when required to do so and only upon prior approval. All contractor employees shall carry proper identification with them at all times, and shall be subject to such checks as may be deemed necessary. The contractor shall ensure compliance with all regulations and orders of the installation which may affect performance. The Government reserves the right to direct the removal of an employee for misconduct, security reasons, or any overt evidence of communicable disease. Removal of contractor employees for reasons stated above does not relieve the Contractor from responsibility for total performance of this contract.

1.4.2 Recognized Holidays: The following are recognized United States (US) holidays. The contractor shall not perform services on these days:

1.4.2.1 New Year’s Day: January 1st
1.4.2.2 Martin Luther King, Jr.’s Birthday
1.4.2.3 President’s Day
1.4.2.4 Memorial Day
1.4.2.5 Independence Day: July 4th
1.4.2.6 Labor Day
1.4.2.7 Columbus Day
1.4.2.8 Veteran’s Day: November 11th
1.4.2.9 Thanksgiving Day
1.4.2.10 Christmas Day: December 25th

1.4.3 Quality Control (QC): The contractor shall develop and maintain an effective QC Plan (QCP) to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's QCP is the means by which it assures itself that its work complies with the requirements of the contract. As a minimum, the contractor shall develop QC procedures that address the areas identified in Technical Exhibit 1, Performance Requirements Summary (PRS). A final QCP shall be submitted to the Contracting Officer Representative (COR) NLT 10 days after contract award. After acceptance of the QCP, the contractor shall obtain the Contracting Officer's (KO's) acceptance in writing of any proposed changes to its QCP.

1.4.4 Quality Assurance (QA): The Government will evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government will do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and acceptable quality level(s) or defect rate(s).

1.4.5 Installation Access and Security Requirements. The contractor shall comply with all applicable installation/facility access and local security policies and procedures, which may be obtained from the COR. The contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. The contractor shall ensure compliance with all personal identity verification requirements as directed by Department of Defense (DoD), Headquarters Department of Army (HQDA) and/or local policy. Should the Force Protection Condition (FPCON) change, the Government may require changes in contractor security matters or processes.

1.4.5.1 For contractors requiring Common Access Card (CAC): The CAC is the DoD Federal Personal Identity Verification (PIV) credential. Before CAC issuance, the contractor employee requires, at a minimum, a favorably adjudicated Tier 1 or an equivalent or higher investigation in accordance with Army Directive 2014-05. The contractor employee will be issued a CAC only if duties involve one of the following: (1) both physical access to a DoD facility and access, via logon, to DoD networks on-site or remotely; (2) remote access, via logon, to a DoD network using DoD-approved remote access procedures; or (3) physical access to multiple DoD facilities or multiple nonDoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. At the discretion of the sponsoring activity, an initial CAC may be issued based on a favorable review of the FBI fingerprint check and a successfully scheduled Tier 1 investigation at the Office of Personnel Management.

Sponsorship and enrollment information about each applicant must be registered in the Defense Enrollment Eligibility Reporting System (DEERS) through either the Real-Time Automated Personnel ID System (RAPIDS) using the DD Form 1172-2 or the Trusted Associate Sponsorship System (TASS).

1.4.5.1.1 Homeland Security Presidential Directive (HSPD)-12 Background Investigation Requirements: The contractor shall ensure that all contractor and subcontractor personnel whose duties require CAC card issuance obtain them, and shall process all CAC card applications. The contractor shall ensure that all employees requiring an initial background investigation complete a Personnel Security Investigation Portal (PSIP) form (See section 6.1 for link to form) at the earliest possible date and that this form is forwarded to the COR immediately. The COR will review the form for completeness and accuracy and forward it to the National Guard Bureau (NGB) Personnel Security manager who will initiate the investigation process via the PSIP. Contractor personnel will then receive two e-mail messages; the first will confirm that the investigative service provider has received the request, and the second will provide instructions for the completion of the appropriate form via the Electronic Questionnaires for Investigations Processing (e-QIP) system. Upon completion of the e-QIP questionnaire and submittal of all required documents, including fingerprint card to the security manager, the background investigation (BI) will be initiated. The contractor shall ensure immediate compliance with all instructions regarding background investigation processing, including those provided verbally, by e-mail or via a Government system. The contractor is cautioned that the entire process from submittal of the PSIP form to return of the FBI fingerprint check may routinely take from two to six weeks and shall factor this lead time into its hiring/placement process. The contractor shall make all reasonable efforts to ensure that contractor employees meet CAC eligibility standards upon assignment to the contract and shall be held responsible for delays, failure to meet performance requirements or decreases in efficiency in accordance with the applicable inspection clause.

1.4.5.1.2 Trusted Associate Sponsorship System (TASS): The contractor shall process CAC applications through the TASS, the procedures for which are described below. Although there is no requirement for the contractor to designate a “Corporate Facility Security Officer" (FSO) to serve as its single point of contact for the BI, the TASS application process and other CAC and security-related matters, such designation facilitates these processes. If an FSO is not established, all contractor employees requiring a CAC will be required to process their own applications. The submission process for CAC applications is as follows:

1. The contractor's FSO or contractor employee shall submit requests for a CAC via email to the designated TASS Trusted Agent (TA). The TASS TA for this requirement will be: **Jameel Franklin (jameel.franklin.nfg@mail.mil)**

2. The Government will establish a TASS application account for each CAC Request and will provide each contractor employee a USER ID and password, via email, to the FSO. The FSO or contractor employee shall access the TASS account and complete the CAC application (entering/editing contractor information as applicable) at: https://tass.dmdc.osd.mil/tass/. The FSO or contractor employee shall follow up to ensure that the TA is processing the request.

3. The Government will inform the contractor's applicant, via email, of one of the following:

a. Approval.* Upon approval, the information is transferred to the DEERS database and an email notification is sent to the contractor with instructions on obtaining their CAC. The contractor proceeds to a RAPIDS station (RAPIDS Site Locator: http://www.dmdc.osd.mil/rsl/).

b. Rejection.* The Government, in separate correspondence, will provide reason(s) for rejection.

c. Return. Additional information or correction to the application required by the contractor employee.

*The contractor shall maintain records of all approved and rejected applications.

1.4.5.1.3 At the RAPIDS station, the RAPIDS Verification Officer will verify the contractor employee by SSN and two forms of identification. Identity source documents must come from the list of acceptable documents included in Form I-9, OMB No. 1615-0047, "Employment Eligibility Verification." Consistent with applicable law, at least one document from the Form I-9 list shall be a valid (unexpired) State or Federal Government-issued picture ID. The Identity documents will be inspected for authenticity and scanned and stored in the DEERS upon issuance of an ID. The photo ID requirement cannot be waived, consistent with applicable statutory requirements. The Verification Officer will capture primary and alternate fingerprints, picture, and updates to DEERS, and will then issue a CAC. Issued CACs will be valid for no longer than three years, or until the individual's contract end date (inclusive of any options), whichever is earlier.

1.4.5.1.4 The contractor shall manage requests for new or renewal CAC cards in sufficient time to ensure that all contractor employees have them when needed to perform work under this contract. The contractor shall provide at least 10 calendar days advance notice to the TA, unless there are extenuating circumstances approved by the COR or KO.

1.4.5.1.5 The contractor shall return issued CACs to the DEERS office upon departure or dismissal of each contractor employee, and shall obtain a receipt for each card and provide it to the TA/COR. This shall be completed on the final day of the contracted employee’s employment.

1.4.5.1.5.1 Failure to comply with these requirements may result in withholding of final payment.

1.4.5.1.6 The contractor shall obtain an Army Knowledge Online (AKO) email address for each applicant, including subcontractors, who may be deployed or require logical access to a government computer network. This can be done by going to:

http://www.us.army.mil and registering as an "Army Guest," with the sponsor being the COR or a COR- designated individual if the COR is ineligible to Serve as an AKO Sponsor. Note: If employees of a contractor lose the privilege to access AKO, they lose the ability to renew their CAC. Therefore, it is critical that contractor employees maintain their AKO accounts.

1.4.5.2 For contractors that do not require a CAC, but require access to a DoD facility or installation: Not applicable

1.4.5.3 Awareness Training (AT) Level 1: All contractor employees, including subcontractor employees, requiring access to Army installations, facilities, and controlled access areas shall complete AT Level 1 training within 30 calendar days after contract start date and within 30 calendar days of new employees commencing performance. The contractor shall submit certificates of completion for each affected contractor and subcontractor employee to the COR within 15 calendar days after completion of training by each employee or subcontractor personnel. AT Level 1 awareness training is available at the following website: https://jko.jten.mil/courses/atl1/launch.html.
1.4.5.4 iWATCH Training: The contractor and all associated subcontractors with an area of performance within an Army-controlled installation, facilities or area shall brief all employees on the local iWATCH program (training standards provided by the requiring activity Antiterrorism Officer (ATO)). This local developed training shall be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR or the KO. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance. The contractor shall report completion for each contractor employee and subcontractor employee to the COR, within 15 calendar days after completion of training.

1.4.5.5 Communications Security/Information Technology (COMSEC/IT) Security. All communications with DoD organizations are subject to COMSEC review. All telephone communications networks are continually subject to intercept by unfriendly intelligence organizations. DoD has authorized the military departments to conduct COMSEC monitoring and recording of telephone calls originating from, or terminating at, DoD organizations. Therefore, the contractor is advised that any time contractor personnel place or receive a call they are subject to COMSEC procedures. The contractor shall ensure wide and frequent dissemination of the above information to all employees dealing with DoD information. The contractor shall abide by all Government regulations concerning the authorized use of the Government's computer network, including the restriction against using the network to recruit Government personnel or advertise job openings.

1.4.5.6 Use of Government Information Systems (IS) and access to Government networks is a revocable privilege, not a right. Users are the foundation of the DoD strategy and their actions affect the most vulnerable portion of the Army Enterprise Infostructure (AEI). Contractor employees shall have a favorable background

investigation or hold a security clearance and access approvals commensurate with the level of information processed or available on the system. Contractor employees shall:

1.4.5.6.1 Comply with the command's Acceptable Use Policy (AUP) for Government owned IS and sign an AUP prior to or upon account activation.

1.4.5.6.2 Complete initial and/or annual Information Assurance (IA) training as defined in the IA Best Business Practices (BBP) training (https://atc.us.army.mil/iastar/docs/Training_BBP.pdf).

1.4.5.6.3 Mark and safeguard files, output products, and storage media per classification level and disseminate them only to individuals authorized to receive them with a valid need to know.

1.4.5.6.4 Protect IS and IS peripherals located in their respective areas in accordance with physical security and data protection requirements.

1.4.5.6.5 Practice safe network and Internet operating principles and take no actions that threaten the integrity of the system or network.

1.4.5.7 Army Training Certification Tracking System (ATCTS): All contractor employees with access to a Government information system shall be registered in ATCTS (https://atc.us.army.mil/iastar/index.php) at commencement of services, and shall successfully complete the DoD Information Assurance awareness training prior to access to the IS and then annually thereafter. (https://iatraining.us.army.mil/).

1.4.5.8 Information Assurance (IA) Training. All contractor employees and associated subcontractor employees shall complete the DoD IA Awareness Training before issuance of network access and annually thereafter.

1.4.5.9 Information Technology (IT) certification. All contractor employees performing services involving IA/IT functions shall comply with DoD and Army workforce training requirements

1.4.5.10 Protection of Personally Identifiable Information (PII). The contractor shall protect all PII encountered in the performance of services in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 224.103 Personally Identifiable Information and Department of Defense Directive (DoDD) 5400.11, Department of Defense Privacy Program, and DoD 5400.11-R. If a PII breach results from the contractor’s violation of the aforementioned policies, the contractor shall bear all notification costs, call-center support costs, and credit monitoring service costs for all individuals whose PII has been compromised

1.4.5.11 OPSEC Training: In accordance with AR 530-1, Operations Security, new contractor employees shall complete Level I OPSEC training within 30 calendar days of their reporting for duty and annually thereafter. The contractor shall submit certificates

of completion for each contractor employee to the COR within 15 calendar days after completion of training. Level 1 OPSEC training is available at https://securityawareness.usalearning.gov/opsec/index.htm.

1.4.5.12 OPSEC SOP/Plan. Not Applicable

1.4.5.13 Access to Classified Information. Not Applicable.

1.4.5.14 Threat Awareness and Reporting Program (TARP). Per AR 381-12, Threat Awareness and Reporting Program (TARP), contractor employees with security clearances must receive annual TARP training by a counterintelligence (CI) agent or other trainer as specified in Chapter 2 Threat Awareness and Education, Section II, paragraph 2-4b. The contractor shall identify annual TARP training, personnel trained, and date of training within the Monthly Progress Report.

1.4.6 Physical Security: The contractor shall safeguard all Government property provided for contractor use. At the close of each work period, Government facilities, equipment and materials shall be secured.

1.4.6.1 Key Control: The contractor shall establish and implement methods of ensuring that no keys/key cards issued by the Government are lost or misplaced or are used by unauthorized persons. No keys issued by the Government shall be duplicated**.** Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The contractor shall immediately report any occurrences of lost or duplicated keys/key cards to the COR.

1.4.6.1.1 The contractor shall immediately report any occurrences of lost or duplicated keys/key cards to the COR.

1.4.6.1.2 In the event keys, other than master keys, are lost or duplicated, the contractor shall, upon direction by the KO, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the Government replaces or re-keys the locks, the Government will deduct the total cost of lock replacement or re-keying from the monthly payment due the contractor. In the event a master key is lost or duplicated, the Government will replace all locks and keys for that system, and will deduct the total cost from the monthly payment due the contractor.

1.4.6.1.3 The contactor shall prohibit the use of the Government issued keys/key cards by any persons other than the contractor’s employees. The contractor shall prohibit the opening of locked areas by contractor employees to permit entrance of persons other than contactor employees engaged in the performance of services in those areas, or personnel authorized entrance by the KO.

1.4.7 Special Qualifications: Contractor shall provide at a minimum a. All contractor staff shall be U.S. Citizen. Personnel assigned to this requirement shall possess the required technical skills and expertise to perform the functions with minimum guidance.

1.4.8
Post Award Conference/Periodic Progress Meetings: The contractor agrees to attend any post award conference convened by the KO in accordance with FAR 42.5. The KO, COR and other Government personnel, as appropriate, may meet periodically with the contractor to review the contactor's performance. At these meetings, the KO will apprise the contractor of how the Government views the contractor's performance and the contractor shall apprise the Government of problems, if any, being experienced. The contractor shall resolve outstanding issues raised by the Government. Contractor attendance at these meetings shall be at no additional cost to the Government.
1.4.9 Contract Manager (CM): The contactor shall designate a CM who shall ensure performance under this contract. The name of this person, and an alternate who shall act for the contractor when the CM is absent, shall be designated in writing to the KO. The CM or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The CM shall work through the COR to resolve issues, receive technical instructions, and ensure adequate performance of services. The CM shall ensure that contractor employees do not perform any services outside the scope of the contract without an official modification issued by the KO. The CM shall ensure contractor employees understand that services performed outside the scope of the contract are performed wholly at the expense of the contractor.

1.4.10 Identification of Contractor Employees: All contractor personnel attending meetings, answering Government telephones and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression that they are Government employees. The contractor shall ensure that all documents or reports produced by contractor personnel are suitably marked as contractor products or that contractor participation is appropriately disclosed. The contractor's status as a "contractor" shall be predominantly displayed in all correspondence types (to include signature blocks on e-mail) and dealings with Government or non-Government entities. Contractor personnel shall wear identification badges distinguishing themselves as such. The badges shall have the company name, employee name and the word "contractor" displayed.

1.4.10.1 The contractor shall retrieve all identification media (including vehicle passes) from its employees who depart employment for any reason. The contractor shall return all identification media (i.e., badges and vehicles passes) to the KO within 14 days of an employee's departure.

1.4.11 Combating Trafficking in Persons: The United States Government has adopted a zero tolerance policy regarding trafficking in persons. Contractors and contractor employees shall not engage in severe forms of trafficking in persons during the period of performance of the contract; procure commercial sex acts during the period of performance of the contract; or use forced labor in the performance of the contract. The

Contractor shall notify its employees of the United States Government's zero tolerance policy, the actions that will be taken against employees for violations of this policy. The contractor shall take appropriate action, up to and including termination, against employees or subcontractors that violate the US Government policy as described at FAR 22.17.

1.4.12 Contractor Travel: The contractor shall travel to any armory in the state of Illinois during the performance of this contract to execute any missions to support and augment the ILARNG consistent with all services described within the PWS paragraph 5. The primary work location shall be at 1301 N. MacArthur Blvd, Springfield, Il 62702. The estimated travel events are 5 events per Case Manager and Care Coordinator. The estimated duration of travel days per event are 3 days. The contractor will be authorized travel expenses consistent with the substantive provisions of the Joint Travel Regulation (JTR) and the limitation of funds specified in this contract. All travel requires COR recommendation for approval and/or authorization by the KO prior to travel arrangements being made.

1.4.13 Data Rights: The Government has unlimited rights to all documents/materials produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the KO. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.4.14 Organizational Conflicts of Interest (OCI): The contractor and subcontractor personnel performing services under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent OCIs, as defined in FAR Subpart 9.5. The contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the KO to avoid or mitigate any such OCI. The contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO. In the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may impose other remedies as he or she deems necessary, including prohibiting the contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.4.15 Phase In / Phase Out Periods: To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the contractor shall have personnel on board, during the 30 days phase in/ phase out periods to transition the current contract workload to the new incumbent. During the phase in period, the

contractor shall become familiar with performance requirements in order to commence full performance of services on the contract start date.

2. Definitions and Acronyms:

2.1 Definitions:

2.1.1 Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.2 Defective Service: A service output that does not meet the standard of performance associated with the PWS.

2.1.3 Deliverable: Anything that can be physically delivered and includes non-manufactured things such as meeting minutes or reports.

2.1.4 Key Personnel: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.5 Physical Security: Actions that prevent the loss or damage of Government property.

2.1.6 Quality Assurance: The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.7 Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.8 Quality Control: All necessary measures taken by the Contractor to ensure that the quality of an end product or service shall meet contract requirements.

2.1.9 Subcontractor: One that enters into a contract with a prime contractor. The Government does not have privacy of contract with the subcontractor.

2.2 Acronyms:

AEI	Army Enterprise Infostructure
AFARS	Army Federal Acquisition Regulation Supplement
AGO	Adjutant General Office
AKO	Army Knowledge Online
AR	Army Regulation
ASD(HA)	Assistant Secretary of Defense for Health Affairs

AT	Antiterrorism
AUP	Acceptable Use Policy
BBP	Best Business Practices
BI	Background Investigation
CAC	Common Access Card
CC	Care Coordinator
CFP/M/E/S	Contractor Furnished Property/Material/Equipment/Services
CFR	Code of Federal Regulations
CM	Contract Manager
COMSEC	Communications Security
CONUS	Continental United States (excludes Alaska and Hawaii)
COOP	Continuity of Operations Planning
COR	Contracting Officer Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DBIW	Database Input Website
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DEERS	Defense Enrollment Eligibility Reporting System
DFARS	Defense Federal Acquisition Regulation Supplement
DHA	Defense Health Agency
DM	Disease Management
DOD	Department of Defense
DODI	Department of Defense Instruction
DSS	Deputy of State Surgeon
DTM	Directive Type Memorandum
eCase	Electronic Case Management System
e-QIP	Electronic Questionnaires for Investigations Processing
FAR	Federal Acquisition Regulation
FBI	Federal Bureau of Investigations
FFP	Firm Fixed Price
FMR	Fully Medically Ready
FPCON	Force Protection Condition
FSO	Facility Security Officer
FY	Fiscal Year
GFP/M/E/S	Government Furnished Property/Material/Equipment/Services
HIPAA	Health Insurance Portability and Accountability Act of 1996
HQDA	Headquarters Department of the Army
HRR	Health Readiness Record
HSS	Health System Specialist
IA	Information Assurance
ID	Identification
IL ARNG	Illinois Army National Guard
IMR	Individual Medical Readiness
IS	Information System(s)
IT	Information Technology

JTR	Joint Travel Regulation
KO	Contracting Officer
LVN/LPN	License Vocational/Practical Nurse
LOD	Line Of Duty
MEB/PEB	Medical Evaluation Board / Physical Evaluation Board
MEDCHART	Medical Electronic Data Care History and Readiness Tracking
MEDPROS	Medical Protection System
MHS	Military Health System
MM	Medical Management
MODS	Medical Operational Data System
NACI	National Agency Check with Inquiries
NCM	Nurse Case Manager
NCQA	National Committee for Quality Assurance
NGB	National Guard Bureau
OCI	Organizational Conflict of Interest
OCMO	Office of the Chief Medical Officer
ODC	Other Direct Costs
OMB	Office of Management and Budget
OPM	Office of Personnel Management
OPSEC	Operational Security
P3	Permanent 3 Profile
P4	Permanent 4 Profile
PC	Personal Computer
PHA	Periodic Health Assessment
PHMMD	Population Health and Medical Management Division
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out
PIV	Personal Identity Verification
POC	Point of Contact
POP	Period of Performance
PRS	Performance Requirements Summary
PSIP	Personnel Security Investigation Portal
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
RAPIDS	Real-Time Automated Personnel Identification System
RN	Registered Nurse
SM	Service Member
SRP	Soldier Readiness Process
SSN	Social Security Number
T3	Temporary 3 Profile
T4	Temporary 4 Profile
TA	Trusted Agent

TARP	Threat Awareness and Reporting Program
TASS	Trusted Associate Sponsorship Program
TE	Technical Exhibit
TMA	TRICARE Management Activity
UM	Utilization Management
URAC	Utilization Review Accreditation Commission
USDI	Under Secretary of Defense for Intelligence
VTC	Video Teleconference

3.0 Government Furnished Property, Material, Equipment and Services (GFP/M/E/S): The Government will provide the property, material, equipment, and/or services listed below solely for the purpose of performance under this contract, however there is limited seating of up to 13 contractor personnel available within the Surgeon's Office:

3.1 Property: The Government will furnish the necessary workspace for the contractor to perform services outlined in this PWS to include desk space, telephones, CAC, computers, and other items necessary to maintain an office environment.

3.2 Materials

3.3 Equipment

3.4 Services

3.5 Utilities: All utilities in the facility will be available for the contactor's use in the performance of this contract. The contractor shall instruct employees in utilities conservation practices. The contractor shall operate under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount.

4.0 Contractor Furnished Property, Materials, and Equipment (CFP/M/E):

4.1 General: Except for those items specifically stated to be Government-Furnished in Paragraph 3.0, the contractor shall furnish everything required to perform these services as indicated in Paragraph 1.1.

5.0 Requirements

5.1 The contractor shall coordinate Soldier's care in accordance with AR 40-501 from the identification of the medical readiness condition to when the Soldier is either considered medically ready for deployment or administratively separated from the military

5.1.1 The contractor shall request profile exams/evaluations and audiology exams at physical exam center upon case assignment by Deputy of State Surgeon (DSS). The contractor shall complete the task within 7 business days' notice.

5.1.2 The contractor shall coordinate Soldier treatment plans in accordance with AR 40-501. The contractor shall complete the task by within 7 business days' notice.

5.1.3 The contractor shall submit case processing, medical documentation, and profile concerns to military/contracted provider upon case assignment by DSS. The contractor shall complete the task within 7 business days' notice.

5.1.4 The contractor shall attend PHA, Pre-SRP and SRP events in support of the Illinois National Guard medical readiness mission in accordance AR 40-501.

5.1.5 The contractor shall confirm Soldiers referred by a provider are followed by the case management team upon case assignment. The contractor shall complete the task within 7 business days' notice.

5.1.6 The contractor shall obtain release of information from Soldier in the event additional medical documentation is required for case management. The contractor shall upload the document in HRR (Health Readiness Record) upon availability of the document.

5.1.7 The contractor shall educate Soldiers on resources available to improve medical and dental readiness. The contractor shall document the completion of the task on an Acknowledgement of Receipt form within HRR at checkout of PHA/SRP events.

5.1.8 The contractor shall track medical documentation via a SharePoint database to confirm Soldier attendance of follow-up appointments and submission of required documentations by established suspense date.

5.1.9 The contractor shall communicate with delegated government personnel to confirm compliance versus noncompliance in terms of suspense date per the medical suspense memorandum within 7 business days of case assignment.

5.1.10 The contractor shall utilize MEDPROS (Medical Protection System) to validate all scheduled services are completed and current medical status is updated and accurate.

5.1.11 The contractor shall report Medical Readiness to the Commander or his/her designated representative upon final checkout of the PHA/SRP event.

5.1.12 The contractor shall ensure Soldiers with P3 or P4 profiles are case managed in the eCase module within 7 business days of medical provider determination.

5.1.13 The contractor shall perform administrative tasks in accordance with AR-600-8-4 (Section 5-13) in relation to state level LOD processing.

5.1.14 The contractor shall confirm coordination of follow up care in relation to LOD cases in accordance with AR-600-8-4.

5.1.15 The contractor shall perform administrative tasks in relation to medical board processing in accordance with AR-635-40 (section 4-10).

5.2 Record Management:

5.2.1 The contractor shall be responsible for medical charting in eCase.

5.2.2 The contractor shall confirm all medical documentation received from the Soldier and/or their medical team, as well as the Solder's hard copy record, is placed in HRR upon receipt.

5.2.3 The contractor shall maintain Soldier medical records in accordance with Army Regulation (AR) 40-66.

5.2.4 The contractor shall enter medical demographic in MEDPROS upon receipt of documentation.

5.2.5 The contractor shall enter check in/out data into Database Input Website (DBIW) upon completion of a PHA/SRP event in accordance with AR 40-501.

5.3 Adherence to regulations and policies:

5.3.1 The contractor shall follow the regulations and policies applicable to Individual Medical Readiness (IMR) and deployment, to include the Army Regulation (AR) 40-501, AR 40-502, AR 600-8-4, AR 600-77, AR 635-40, and any applicable PRZ (Personnel) logs.

5.3.2 The contractor shall comply with the Health Insurance Portability and Accountability Act of 1996 (HIPAA) standards and guidelines.

5.4 Staffing Level and Technical Qualifications:

5.4.1 The contractor shall fill any vacancies within 60 days of employee departure.

5.4.2 The contractor shall provide personnel that meet the technical specifications: Licensed Vocational/Practitioner Nurse (LVN/LPN) or Registered Nurse (RN) as Non-clinical Case Managers to provide IMR support to the Army National Guard. Technical skills for all contractor provided staff shall include PC proficiency, specifically Microsoft Word, and Excelas in order to accomplish the tasks identified within section 5.

5.5 Service Contractor Reporting:

5.5.1 The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for the National Guard Bureau via a secure data collection site.

5.5.2 The contractor shall completely fill in all required data fields using the following web address: https://sam.gov. Log in and select Entity Registrations and then select Service Contract Reporting.

The Contractor shall report the required information annually by October 31, for services performed under this contract during the preceding Government fiscal year (October 1-September 30).

The DoD Guidebook for Service Contract Reporting in the SAM, available on the DoD Procurement Toolbox at https://dodprocurementtoolbox.com/site-pages/service-contract-reporting-scr. The General Services Administration (GSA) has also posted additional guidance such as quick start guides, informational videos, and frequently asked questions, that can be accessed by going to https://sam.gov and searching the "HELP" section. The SAM Federal User Guide is also available in the "HELP" section for comprehensive instructions on navigating SAM. Contractors requiring assistance using SAM should contact the Federal Service Desk at https://www.fsd.gov

6.0 Applicable Publications: Publications applicable to this PWS are listed below:

Publication (Chapter/Page)	Date of Publication	Mandatory or Advisory	Website
AR 40-66 Medical Record Administration and Healthcare Documentation	01/04/2010	Mandatory	https://armypubs.army.mil/
40-501 Standards of Medical Fitness	06/14/2017	Mandatory	https://armypubs.army.mil/ProductMaps/PubForm/Details.aspx?PUB_ID=1004688
AR 40-502 Medical Readiness	06/27/2019	Mandatory	https://armypubs.army.mil/ProductMaps/PubForm/Details.aspx?PUB_ID=1004858
AR 600-8-4 Line Of Duty Policy, Procedures, and Investigations	03/15/2019	Mandatory	https://armypubs.army.mil/ProductMaps/PubForm/Details.aspx?PUB_ID=1003269
AR 600-77 Administrative Management of Wounded, Ill, or Injured Soldiers	03/05/2019	Mandatory	https://armypubs.army.mil/ProductMaps/PubForm/Details.aspx?PUB_ID=1001957
AR 635-40 Disability Evaluation for Retention, Retirement or Separation	01/19/2017	Mandatory	https://armypubs.army.mil/ProductMaps/PubForm/Details.aspx?PUB_ID=1000960
DoDM 1000.13-M-V1 DoD Identification (ID) Cards (Enclosure 2, paragraph 3.b)	01/23/2014 (Change 1: 07/28/2020)	Mandatory	http://www.esd.whs.mil/Directives/issuances/dodm/

Federal Information Processing Standards (FIPS) Publication 201-2 Personal Identity Verification (PIV) of Federal Employees and Contractors (paragraph 9)	August 2013	Mandatory	http://nvlpubs.nist.gov/nistpubs/FIPS/NIST.FIPS.201-2.pdf
DoDM 5200.2 Regulation 5200.02 Procedures for the DoD Personnel Security Program (PSP)	04/03/2017	Mandatory	http://www.dtic.mil/whs/directives/corres/pub1.html
DoDI 5200.46 DoD Investigative and Adjudicative Guidance for Issuing the Common Access Card (CAC)	09/09/14 (Change 1: 05/04/2018)		https://www.esd.whs.mil/Directives/issuances/dodi/
Army Directive 2014-05 Policy and Implementation Procedures for Common Access Card Credentialing and Installation Access for Uncleared Contractors	03/07/2014	Mandatory	http://www.apd.army.mil/ProductMaps/PubForm/ArmyDir.aspx
AR 190-13 The Army Physical Security Program	02/25/2011	Mandatory	http://www.apd.army.mil/ProductMaps/PubForm/AR.aspx
Homeland Security Presidential Directive (HSPD)-12 Policy for a Common Identification Standard for Federal Employees and Contractors	08/27/2004	Mandatory	https://www.dhs.gov/homeland-security-presidential-directive-12
DoDI 5400.11 Department of Defense Privacy and Civil Liberties Programs	01/29/2019		https://www.esd.whs.mil/Directives/issuances/dodi/
DoD 5400.11-R Department of Defense Privacy and Civil Liberties Programs	01/29/2019	Mandatory	https://www.esd.whs.mil/Directives/issuances/dodi/
DoDD 8140.01 Cyberspace Workforce Management	10/05/2020		https://www.esd.whs.mil/Directives/issuances/dodd/
DoD 8570.01-M Information Assurance Workforce Improvement Program	12/19/2005 (Change 4: 11/10/2015)	Mandatory	http://www.dtic.mil/whs/directives/corres/pub1.html
AR 25-2 Information Assurance	04/04/2019	Mandatory	http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx

AR 530-1 Operations Security	09/26/2014	Mandatory	http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx
DoD 5220.22-M National Industrial Security Program Operating Manual	02/28/2006 (Change 2: 05/18/2016)	Mandatory	http://www.dtic.mil/whs/directives/corres/pub1.html
AR 381-12 Threat Awareness and Reporting Program (TARP) (Section II, ¶ 2-4.b)	06/01/2016	Mandatory	http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx
AR 525-13 Antiterrorism	12/09/2019		http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx
Executive Order on Combating Race and Sex Stereotyping	09/22/2020	Mandatory	https://www.whitehouse.gov/presidential-actions/executive-order-combating-race-sex-stereotyping/

6.1 Applicable Forms: Forms applicable to the PWS are listed below:

Form	Date	Website
DD 1172-2 Application for Identification Card/DEERS Enrollment	Mar 2017	http://www.dtic.mil/whs/directives/forms/index.htm
I-9 Employment Eligibility Verification	11/21/2019	https://www.uscis.gov/sites/default/files/files/form/i-9.pdf
DD 441 Department of Defense Security Agreement	FEB 2020	http://www.dtic.mil/whs/directives/forms/dd/ddforms0001-0499.htm
DD 250 Material Inspection and Receiving Report	Aug 2000	https://www.esd.whs.mil/Directives/forms/dd0001_0499/

TECHNICAL EXHIBIT 1

Performance Requirements Summary (PRS)

This PRS includes performance objectives the Government will use to determine contractor performance and will compare contractor performance to the Acceptable Quality Level (AQL).

Performance Objective	Performance Standard	Acceptable Quality Levels (AQL)	Surveillance Method / By Whom
5.1 The contractor shall coordinate Soldier's care from the identification of the medical readiness condition to when the Soldier is either considered medically ready for deployment or administratively separated from the military	In accordance with AR 40-501	90% of the Soldier's care is in accordance to AR 40-501	Periodic Inspection / COR
5.1.1 The contractor shall request profile exams/evaluations and audiology exams at physical exam center upon case assignment by DSS.	Complete within 7 business days notice	90% compliance	Periodic Inspection / COR
5.1.3 The contractor shall submit case processing, medical documentation, and profile concerns to military/contracted provider upon case assignment by DSS.	Complete within 7 business days notice	90% of the case processing is completed by the suspense date	Periodic Inspection / COR
5.1.4 The contractor shall attend PHA, Pre-SRP and SRP events in support of the Illinois National Guard medical readiness mission in accordance AR 40-501.	-Must attend all events -Adherence to AR 40-501	100% compliance	100% inspection / COR
5.1.10 The contractor shall utilize MEDPROS to validate all scheduled services are	No later than 7 days after services are completed	90% compliance	Periodic Inspection / COR

completed and current medical status is updated and accurate			
5.2.2 The contractor shall confirm all medical documentation received from the Soldier and/or their medical team, as well as the Solder's hard copy record, is placed in HRR upon receipt	Within 7 days of documents availability	100% of documents placed in HR within the required 7 days of document availability	Periodic Inspection / COR
5.3.1 Policy/Regulation adherence	The contractor shall follow the regulations and policies applicable to Individual Medical Readiness (IMR) and deployment, to include the Army Regulation (AR) 40-501, AR 40-502, AR 600-8-4, AR 600-77, AR 635-40, and any applicable PRZ logs	90% adherence to polices/procedures	Periodic Inspection / COR
5.3.2 HIPAA adherence	The contractor shall comply with the Health Insurance Portability and Accountability Act of 1996 (HIPAA) standards and guidelines.	100% adherence to HIPAA	100% inspection / COR
5.4.1 The contractor shall fill job vacancies.	Within 60 days of employee departure	100% compliance	100% inspection / COR
5.4.2 Personnel Technical Qualification	Contractor shall provide technically qualified personnel	100% of staff are technically qualified and	100% inspection / COR

	that are technical qualified based on section 1.4.7 and able to perform the tasks identified under section 5.	capable of performing the tasks	

TECHNICAL EXHIBIT 2

Deliverables Schedule

PWS Reference / Deliverable Title	Frequency	Number of Copies	Medium/Format	Submit To
1.4.5.1.5 Return Issued CAC Cards to DEERS office prior to departure or dismissal	Provide upon final day in the office	1	Hard Copy	COR / TA
1.4.5.3 AT Level 1 Awareness Training Certificates	Provide within 15 calendar days after employee completes training.	1	Electronic Submission	COR
1.4.5.4 iWATCH Training Certificates	Provide within 15 calendar days after employee completes training.	1	Electronic Submission	COR
1.4.5.8 Information Assurance (IA)/Information Technology (IT) Training	Provide within 15 calendar days after employee completes training.	1	Electronic Submission	COR
1.4.7 Personnel Technical Qualification Documentations	Provide within 15 calendar days of employee start date	1	Electronic Submission	COR
1.4.10 Identification Media	Return within 14 days of employee's departure from contract performance.	Original(s)	Hard Copy	COR

TECHNICAL EXHIBIT 3

Estimated Workload Data

This information is provided for historical background only. It is not a guarantee of workload quantities.

Below is a table of the historical positions and hours worked. Historically, one Nurse Case Manager (NCM) can manage 2,000 servicemen with an estimated 1920 hours worked per year. One Care Coordinator (CC) assist one NCM. Both inventory managers and CC work similar hours to the NCM. The historical data is provided for reference only and it is the contractor's responsibility to determine the appropriate staffing level required. The current contract's staffing level is under staff based on the current requirement. The current contract does not include positions to manage the LOD's and medical board cases as those are new requirements.

Position	Number of Personnel	Hours Worked Per Personnel
Nurse Case Manager	4	1920
Care Coordinators	4	1920
Medical Records Inventory Manager	1	1920
Assistant Medical Records Inventory Manager	1	1920

The chart below is the estimated workload data based off of historical data collected.

ITEM	NAME	ANNUAL ESTIMATED QUANTITY
1	Service Members to be monitored	10,300
2	PHA/SRP Events	40-60
3	New Board Cases	300
4	New LODs	300

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001		12	Months		

Medical Case Management Services (Base)
FFP
Non-Personal Services: The contractor shall furnish all medical case management services in accordance with the Performance Work Statement (PWS). The contractor is allowed to bill on a monthly basis. The Government will honor and pay the invoice where the contractor has satisfied the tasks and requirements identified in the PWS, Performance Requirement Summary (PRS), and Deliverable List.
FOB: Destination
PSC CD: Q702

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002			Each		

Travel
COST
This CLIN is for the travel cost associated with medical case management services. Payment shall be in accordance with the Joint Travel Regulations (JTR). All travel requires Contracting Officer's Representative (COR) recommendation for approval and/or authorization prior to travel arrangements being made.This is a Not to Exceed (NTE) reimbursement CLIN.
FOB: Destination
PURCHASE REQUEST NUMBER: 0011584542
PSC CD: Q702

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003	Service Contractor Reporting FFP This is an informational CLIN: The contractor shall completely fill in all required data fields using the following web address: https://sam.gov. Log in and select Entity Registrations and then select Service Contract Reporting. The contractor shall report ALL contractor labor hours required for performance of services provided under this contract for National Guard Bureau via a secure data collection site. Reporting units will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. If your contract overlaps two or more fiscal years, please enter the data separately for each year. You may divide the labor hours and labor dollars proporateionately based on the length of time spent in each fiscal year. Contracts may direct questions to the help desk at https://www.sam.gov FOB: Destination				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001 OPTION	Medical Case Management (Option Year 1) FFP Non-Personal Services: The contractor shall furnish all medical case management services in accordance with the Performance Work Statement (PWS). The contractor is allowed to bill on a monthly basis. The Government will honor and pay the invoice where the contractor has satisfied the tasks and requirements identified in the PWS, Performance Requirement Summary (PRS), and Deliverable List. FOB: Destination PSC CD: Q702	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1002			Each		
OPTION	Travel (Option Year 1) COST This CLIN is for the travel cost associated with medical case management services. Payment shall be in accordance with the Joint Travel Regulations (JTR). All travel requires Contracting Officer's Representative (COR) recommendation for approval and/or authorization prior to travel arrangements being made.This is a Not to Exceed (NTE) reimbursement CLIN. FOB: Destination PSC CD: Q702				
				ESTIMATED COST	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1003					
OPTION	Service Contractor Report (Op Year 1) FFP This is an informational CLIN: The contractor shall completely fill in all required data fields using the following web address: https://sam.gov. Log in and select Entity Registrations and then select Service Contract Reporting. The contractor shall report ALL contractor labor hours required for performance of services provided under this contract for National Guard Bureau via a secure data collection site. Reporting units will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. If your contract overlaps two or more fiscal years, please enter the data separately for each year. You may divide the labor hours and labor dollars proporateionately based on the length of time spent in each fiscal year. Contracts may direct questions to the help desk at https://www.sam.gov FOB: Destination				
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2001		12	Months		
OPTION	Medical Case Management (Option Year 2) FFP Non-Personal Services: The contractor shall furnish all medical case management services in accordance with the Performance Work Statement (PWS). The contractor is allowed to bill on a monthly basis. The Government will honor and pay the invoice where the contractor has satisfied the tasks and requirements identified in the PWS, Performance Requirement Summary (PRS), and Deliverable List. FOB: Destination PSC CD: Q702				
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2002			Each		
OPTION	Travel (Option Year 2) COST This CLIN is for the travel cost associated with medical case management services. Payment shall be in accordance with the Joint Travel Regulations (JTR). All travel requires Contracting Officer's Representative (COR) recommendation for approval and/or authorization prior to travel arrangements being made.This is a Not to Exceed (NTE) reimbursement CLIN. FOB: Destination PSC CD: Q702				
				ESTIMATED COST	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2003 OPTION	Service Contractor Reporting (Op Year 2) FFP This is an informational CLIN: The contractor shall completely fill in all required data fields using the following web address: https://sam.gov. Log in and select Entity Registrations and then select Service Contract Reporting. The contractor shall report ALL contractor labor hours required for performance of services provided under this contract for National Guard Bureau via a secure data collection site. Reporting units will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. If your contract overlaps two or more fiscal years, please enter the data separately for each year. You may divide the labor hours and labor dollars proporateionately based on the length of time spent in each fiscal year. Contracts may direct questions to the help desk at https://www.sam.gov FOB: Destination				

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3001 OPTION	Medical Case Management (Option Year 3) FFP Non-Personal Services: The contractor shall furnish all medical case management services in accordance with the Performance Work Statement (PWS). The contractor is allowed to bill on a monthly basis. The Government will honor and pay the invoice where the contractor has satisfied the tasks and requirements identified in the PWS, Performance Requirement Summary (PRS), and Deliverable List. FOB: Destination PSC CD: Q702	12	Months		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3002			Each		
OPTION	Travel (Option Year 3) COST This CLIN is for the travel cost associated with medical case management services. Payment shall be in accordance with the Joint Travel Regulations (JTR). All travel requires Contracting Officer's Representative (COR) recommendation for approval and/or authorization prior to travel arrangements being made.This is a Not to Exceed (NTE) reimbursement CLIN. FOB: Destination PSC CD: Q702				
				ESTIMATED COST	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3003					
OPTION	Service Contractor Reporting (Op Year 3) FFP This is an informational CLIN: The contractor shall completely fill in all required data fields using the following web address: https://sam.gov. Log in and select Entity Registrations and then select Service Contract Reporting. The contractor shall report ALL contractor labor hours required for performance of services provided under this contract for National Guard Bureau via a secure data collection site. Reporting units will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. If your contract overlaps two or more fiscal years, please enter the data separately for each year. You may divide the labor hours and labor dollars proporateionately based on the length of time spent in each fiscal year. Contracts may direct questions to the help desk at https://www.sam.gov FOB: Destination				
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4001		12	Months		
OPTION	Medical Case Management (Option Year 4) FFP Non-Personal Services: The contractor shall furnish all medical case management services in accordance with the Performance Work Statement (PWS). The contractor is allowed to bill on a monthly basis. The Government will honor and pay the invoice where the contractor has satisfied the tasks and requirements identified in the PWS, Performance Requirement Summary (PRS), and Deliverable List. FOB: Destination PSC CD: Q702				
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4002			Each		
OPTION	Travel (Option Year 4) COST This CLIN is for the travel cost associated with medical case management services. Payment shall be in accordance with the Joint Travel Regulations (JTR). All travel requires Contracting Officer's Representative (COR) recommendation for approval and/or authorization prior to travel arrangements being made.This is a Not to Exceed (NTE) reimbursement CLIN. FOB: Destination PSC CD: Q702				
				ESTIMATED COST	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4003 OPTION	Service Contractor Reporting (Op Year 4) FFP This is an informational CLIN: The contractor shall completely fill in all required data fields using the following web address: https://sam.gov. Log in and select Entity Registrations and then select Service Contract Reporting. The contractor shall report ALL contractor labor hours required for performance of services provided under this contract for National Guard Bureau via a secure data collection site. Reporting units will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. If your contract overlaps two or more fiscal years, please enter the data separately for each year. You may divide the labor hours and labor dollars proporateionately based on the length of time spent in each fiscal year. Contracts may direct questions to the help desk at https://www.sam.gov FOB: Destination				

NET AMT

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government
0002	Destination	Government	Destination	Government
0003	Destination	Government	Destination	Government
1001	Destination	Government	Destination	Government
1002	Destination	Government	Destination	Government
1003	Destination	Government	Destination	Government
2001	Destination	Government	Destination	Government
2002	Destination	Government	Destination	Government
2003	Destination	Government	Destination	Government
3001	Destination	Government	Destination	Government
3002	Destination	Government	Destination	Government
3003	Destination	Government	Destination	Government
4001	Destination	Government	Destination	Government
4002	Destination	Government	Destination	Government
4003	Destination	Government	Destination	Government

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	POP 16-JUN-2021 TO 15-JUN-2022	N/A	MEDICAL BRANCH NCOIC CLINTON MURPHY 1301 N MACARTHUR BLVD SPRINGFIELD IL 62702 217-761-3821 FOB: Destination	W56ESR
0002	POP 16-JUN-2021 TO 15-JUN-2022	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W56ESR
0003	POP 16-JUN-2021 TO 15-JUN-2022	N/A	N/A FOB: Destination	
1001	POP 16-JUN-2022 TO 15-JUN-2023	N/A	MEDICAL BRANCH NCOIC CLINTON MURPHY 1301 N MACARTHUR BLVD SPRINGFIELD IL 62702 217-761-3821 FOB: Destination	W56ESR
1002	POP 16-JUN-2022 TO 15-JUN-2023	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W56ESR
1003	POP 16-JUL-2022 TO 15-JUN-2023	N/A	N/A FOB: Destination	
2001	POP 16-JUN-2023 TO 15-JUN-2024	N/A	MEDICAL BRANCH NCOIC CLINTON MURPHY 1301 N MACARTHUR BLVD SPRINGFIELD IL 62702 217-761-3821 FOB: Destination	W56ESR
2002	POP 16-JUN-2023 TO 15-JUN-2024	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W56ESR
2003	POP 16-JUN-2023 TO 15-JUN-2024	N/A	N/A FOB: Destination	
3001	POP 16-JUN-2024 TO 15-JUN-2025	N/A	MEDICAL BRANCH NCOIC CLINTON MURPHY 1301 N MACARTHUR BLVD SPRINGFIELD IL 62702 217-761-3821 FOB: Destination	W56ESR

3002	POP 16-JUN-2024 TO 15-JUN-2025	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W56ESR
3003	POP 16-JUN-2024 TO 15-JUN-2025	N/A	N/A FOB: Destination	
4001	POP 16-JUN-2025 TO 15-JUN-2026	N/A	MEDICAL BRANCH NCOIC CLINTON MURPHY 1301 N MACARTHUR BLVD SPRINGFIELD IL 62702 217-761-3821 FOB: Destination	W56ESR
4002	POP 16-JUN-2025 TO 15-JUN-2026	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W56ESR
4003	POP 16-JUN-2025 TO 16-JUN-2026	N/A	N/A FOB: Destination	

CLAUSES INCORPORATED BY REFERENCE

52.203-3	Gratuities	APR 1984
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.204-4	Printed or Copied Double-Sided on Postconsumer Fiber Content Paper	MAY 2011
52.204-7	System for Award Management	OCT 2018
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	JUN 2016
52.204-22	Alternative Line Item Proposal	JAN 2017
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	OCT 2020
52.212-3 Alt I	Offeror Representations and Certifications--Commercial Items (JAN 2021) Alternate I	OCT 2014
52.212-4	Contract Terms and Conditions--Commercial Items	OCT 2018
52.219-8	Utilization of Small Business Concerns	OCT 2018
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.229-11	Tax on Certain Foreign Procurements--Notice and Representation	JUN 2020
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	DEC 2013
52.233-2	Service Of Protest	SEP 2006
52.237-1	Site Visit	APR 1984
52.237-2	Protection Of Government Buildings, Equipment, And Vegetation	APR 1984
52.237-3	Continuity Of Services	JAN 1991

252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	SEP 2013
252.203-7005	Representation Relating to Compensation of Former DoD Officials	NOV 2011
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7002	Payment For Contract Line or Subline Items Not Separately Priced	APR 2020
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors.	FEB 2019
252.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information	OCT 2016
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	DEC 2019
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	MAY 2016
252.204-7016	Covered Defense Telecommunications Equipment or Services -- Representation	DEC 2019
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services -- Representation	DEC 2019
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	DEC 2019
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements	NOV 2020
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	NOV 2020
252.205-7000	Provision Of Information To Cooperative Agreement Holders	DEC 1991
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.219-7009	Section 8(a) Direct Award	OCT 2018
252.225-7048	Export-Controlled Items	JUN 2013
252.225-7974 (Dev)	Representation Regarding Business Operations with the Maduro Regime (DEVIATION 2020-O0005)	FEB 2020
252.226-7001	Utilization of Indian Organizations and Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns	APR 2019
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7010	Levies on Contract Payments	DEC 2006
252.232-7017	Accelerating Payments to Small Business Subcontractors--Prohibition on Fees and Consideration	APR 2020
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel	JUN 2013
252.239-7001	Information Assurance Contractor Training and Certification	JAN 2008
252.239-7009	Representation of Use of Cloud Computing	SEP 2015
252.239-7010	Cloud Computing Services	OCT 2016
252.239-7016	Telecommunications Security Equipment, Devices, Techniques, And Services	DEC 1991
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2012
252.244-7000	Subcontracts for Commercial Items	OCT 2020
252.247-7023	Transportation of Supplies by Sea	FEB 2019

CLAUSES INCORPORATED BY FULL TEXT

52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (JUN 2020)

(a) Definitions. As used in this clause--

Agent means any individual, including a director, an officer, an employee, or an independent Contractor, authorized to act on behalf of the organization.

Full cooperation—

(1) Means disclosure to the Government of the information sufficient for law enforcement to identify the nature and extent of the offense and the individuals responsible for the conduct. It includes providing timely and complete response to Government auditors' and investigators' request for documents and access to employees with information;

(2) Does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not require--

(i) A Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine; or

(ii) Any officer, director, owner, or employee of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; and

(3) Does not restrict a Contractor from--

(i) Conducting an internal investigation; or

(ii) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

Subcontract means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

Subcontractor means any supplier, distributor, vendor, or firm that furnished supplies or services to or for a prime contractor or another subcontractor.

United States means the 50 States, the District of Columbia, and outlying areas.

(b) Code of business ethics and conduct. (1) Within 30 days after contract award, unless the Contracting Officer establishes a longer time period, the Contractor shall--

(i) Have a written code of business ethics and conduct;

(ii) Make a copy of the code available to each employee engaged in performance of the contract.

(2) The Contractor shall--

(i) Exercise due diligence to prevent and detect criminal conduct; and

(ii) Otherwise promote an organizational culture that encourages ethical conduct and a commitment to compliance with the law.

(3)(i) The Contractor shall timely disclose, in writing, to the agency Office of the Inspector General (OIG), with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed--

(A) A violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code; or

(B) A violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(ii) The Government, to the extent permitted by law and regulation, will safeguard and treat information obtained pursuant to the Contractor's disclosure as confidential where the information has been marked “confidential” or “proprietary” by the company. To the extent permitted by law and regulation, such information will not be released by the Government to the public pursuant to a Freedom of Information Act request, 5 U.S.C. Section 552, without prior notification to the Contractor. The Government may transfer documents provided by the Contractor to any department or agency within the Executive Branch if the information relates to matters within the organization's jurisdiction.

(iii) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the Contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract.

(c) Business ethics awareness and compliance program and internal control system. This paragraph (c) does not apply if the Contractor has represented itself as a small business concern pursuant to the award of this contract or if this contract is for the acquisition of a commercial item as defined at FAR 2.101. The Contractor shall establish the following within 90 days after contract award, unless the Contracting Officer establishes a longer time period:

(1) An ongoing business ethics awareness and compliance program.

(i) This program shall include reasonable steps to communicate periodically and in a practical manner the Contractor's standards and procedures and other aspects of the Contractor's business ethics awareness and compliance program and internal control system, by conducting effective training programs and otherwise disseminating information appropriate to an individual's respective roles and responsibilities.

(ii) The training conducted under this program shall be provided to the Contractor's principals and employees, and as appropriate, the Contractor's agents and subcontractors.

(2) An internal control system.

(i) The Contractor's internal control system shall--

(A) Establish standards and procedures to facilitate timely discovery of improper conduct in connection with Government contracts; and

(B) Ensure corrective measures are promptly instituted and carried out.

(ii) At a minimum, the Contractor's internal control system shall provide for the following:

(A) Assignment of responsibility at a sufficiently high level and adequate resources to ensure effectiveness of the business ethics awareness and compliance program and internal control system.

(B) Reasonable efforts not to include an individual as a principal, whom due diligence would have exposed as having engaged in conduct that is in conflict with the Contractor's code of business ethics and conduct.

(C) Periodic reviews of company business practices, procedures, policies, and internal controls for compliance with the Contractor's code of business ethics and conduct and the special requirements of Government contracting, including--

(1) Monitoring and auditing to detect criminal conduct;

(2) Periodic evaluation of the effectiveness of the business ethics awareness and compliance program and internal control system, especially if criminal conduct has been detected; and

(3) Periodic assessment of the risk of criminal conduct, with appropriate steps to design, implement, or modify the business ethics awareness and compliance program and the internal control system as necessary to reduce the risk of criminal conduct identified through this process.

(D) An internal reporting mechanism, such as a hotline, which allows for anonymity or confidentiality, by which employees may report suspected instances of improper conduct, and instructions that encourage employees to make such reports.

(E) Disciplinary action for improper conduct or for failing to take reasonable steps to prevent or detect improper conduct.

(F) Timely disclosure, in writing, to the agency OIG, with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of any Government contract performed by the Contractor or a subcontractor thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 U.S.C. or a violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(1) If a violation relates to more than one Government contract, the Contractor may make the disclosure to the agency OIG and Contracting Officer responsible for the largest dollar value contract impacted by the violation.

(2) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract, and the respective agencies' contracting officers.

(3) The disclosure requirement for an individual contract continues until at least 3 years after final payment on the contract.

(4) The Government will safeguard such disclosures in accordance with paragraph (b)(3)(ii) of this clause.

(G) Full cooperation with any Government agencies responsible for audits, investigations, or corrective actions.

(d) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts that exceed the threshold specified in FAR 3.1004(a) on the date of subcontract award and a performance period of more than 120 days.

(2) In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(End of clause)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ( ) has ( ) does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.212-1 INSTRUCTIONS TO OFFERORS--COMMERCIAL ITEMS (JUN 2020)

(a) North American Industry Classification System (NAICS) code and small business size standard. The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern which submits an offer in its own name, but which proposes to furnish an item which it did not itself manufacture, is 500 employees.

(b) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

CONTRACT PROPOSAL		
RFP No. W91SMC-21-R-0003 (MEDICAL CASE MANAGEMENT FY21)		
Anticipated Period of Performance	16 June 2021- 15 June 2022	
Proposal Volume/Section	**Page Limits (Maximum)**	**File Naming Structure**
Cover Letter (must include): • Company Name • Cage Code • Solicitation Number • Proposed Team Member Names & Contact Information • Proposal Validity Date • Authorized Offeror Representatives	2 Pages	[Offeror Name] CoverLtr.doc
Volume I –Technical Approach	15 Pages (Maximum)	Vol-I [Offeror Name] TECH.doc
Volume II –Management Approach		Vol-II [Offeror Name] MGT.doc
• Section 1- Management Plan	10 Pages (Maximum)	
• Section 2- Staffing Plan	10 Pages (Maximum)	
Volume III –Past Performance Approach	3 Pages per Projects	Vol-III [Offeror Name]PP.doc
Volume IV –Pricing Approach • Format in accordance with pricing table provided • Service Contractor Reporting (CLINS x003) is separately priced.		Vol-IV [Offeror Name]Price.xls
Volume V –Contractual Documents • Submit **completed and signed** • Fill-in only clauses of Clauses Incorporated by Full Text	Page count not applicable	Vol-V [Offeror Name]CD.pdf

(1) The solicitation number;

(2) The time specified in the solicitation for receipt of offers;

(3) The name, address, and telephone number of the offeror;

(4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;

(5) Terms of any express warranty;

(6) Price and any discount terms;

(7) "Remit to" address, if different than mailing address;

(8) A completed copy of the representations and certifications at FAR 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);

(9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) Period for acceptance of offers. The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) Product samples. When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) Multiple offers. Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with subpart 4.10 of the Federal Acquisition Regulation), or alternative commercial items for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers:

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is “late” and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and--

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) Multiple awards. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation. (1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained for a fee by submitting a request to--GSA Federal Supply Service Specifications Section, Suite 8100, 470 East L'Enfant Plaza, SW, Washington, DC 20407, Telephone (202) 619-8925, Facsimile (202) 619-8978.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a single copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained free of charge by submitting a request to the addressee in paragraph (i)(1)(i) of this provision. Additional copies will be issued for a fee.

(2) Most unclassified Defense specifications and standards may be downloaded from the following ASSIST websites:

(i) ASSIST (https://assist.dla.mil/online/start/).

(ii) Quick Search (http://quicksearch.dla.mil/).

(iii) ASSISTdocs.com (http://assistdocs.com).

(3) Documents not available from ASSIST may be ordered from the Department of Defense Single Stock Point (DoDSSP) by--

(i) Using the ASSIST Shopping Wizard (https://assist.dla.mil/wizard/index.cfm);

(ii) Phoning the DoDSSP Customer Service Desk (215) 697-2179, Mon-Fri, 0730 to 1600 EST; or

(iii) Ordering from DoDSSP, Building 4, Section D, 700 Robbins Avenue, Philadelphia, PA 19111-5094, Telephone (215) 697-2667/2179, Facsimile (215) 697-1462.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) Unique entity identifier. (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) Reserved.

(l) Debriefing. If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial items, the make and model of the item to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.212-2 EVALUATION--COMMERCIAL ITEMS (OCT 2014)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

(b) The Government will award a contract resulting from this solicitation to the responsible offerors whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The award will be made based on the following four (4) evaluation factors:

(i) Technical Approach

(ii) Management Approach

(iii) Past Performances

(iv) Cost/Price

The Technical Approach factor is considered more important than the Management Approach factor. The Management Approach Factor is considered more important than Past Performance factor. Technical, management, and past performance, when combined, are equal to price.

Factor 1- Technical Performance (Volume I):

(a) The contractor shall be responsible for ensuring their proposal fully outlines the capability to adhere to the specifications listed in the Performance Work Statement (PWS). The contractor shall discuss their proposed process and procedures to plan and perform the work required to achieve all of the tasks specified in paragraph 5 of the PWS. In doing so, the contractor shall describe their understanding of the scope of services required in the contract PWS to include; tasks/functions to be performed, labor categories needed, experience and knowledge that personnel should have to perform the tasks/functions, and supplies/equipment required. Provide a discussion on industry standards and best practices that will be used in the performance of the PWS. Also include how you will meet the requirements in a timely manner with a high level of confidence for successfully completing tasks/functions.

Factor 2- Management Approach (Volume II):

(a) The contractor shall provide sufficient detail to address the Management Plan and Staffing Plan as follows:

a. The Management Plan shall describe the Offeror's approach for managing and directing the overall operation of the contract. The Management Plan shall address a quality control plan for early identification and resolution of problems, and controls in place to resolve previous or present problems to ensure that such problems do not affect future performance on the proposed contract.

b. The Staffing Plan shall describe the Offeror's process to recruit and retain a qualified and capable workforce that can accomplish the entire scope of the effort outlined in the PWS. It shall highlight strategy to address the hiring process to fill job vacancies during contract performance.

Factor 3- Past Performances (Volume III):

(a) Past performance is a measure of the degree to which an Offeror, as an organization, has in the past 3 years satisfied its customers, and efficiently and effectively managed their contracts, on projects of similar scope and magnitude. Past performance history shall be used to gauge the level of risk. Offeror's with no relevant performance history or for whom information on past performance is not available will receive a

neutral rating. A neutral rating will be evaluated as a "pass" for the purposes of determining technical acceptability. In the investigation of an Offeror's past performance, the Government has the right to contact former customers, government agencies, and other private and public sources of information.

(b) An Offeror's past performance will be assessed as very relevant, relevant, somewhat relevant, or not relevant. Very relevant shall mean that present or past performance effort involved essentially the same scope and magnitude of effort and complexities that this solicitation requires. Relevant shall mean that present or past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires. Somewhat relevant shall mean that present or past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires. Not relevant shall mean that present or past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

(c) The contractor shall provide up to three (3) relevant projects or contracts that include the following information:

a. Government Agency/Company who awarded the contract
b. Contract Number
c. Detailed Description of Services
d. Contract Value
e. Period of Performance
f. Place of Performance
g. Contract Type
h. Current POC with current email address and phone number

Factor 4- Pricing (Volume IV):

(a) Pricing will be based on price reasonableness.

(b) As part of the price evaluation, the Government will evaluate the Option to Extend Services under FAR Clause 52.217-8 by adding one-half of the offeror's final period price to the offeror's total price. Thus, the offeror's total price for the purpose of the evaluation will be calculated using ½ of the last toption period of the performance. Offerors are required only to price the base year and all option periods. Offerors shall not submit a price for the potential one-half year extension of services period.

(c) In terms of "price reasonableness", the Government will focus on whether the price is too high to be considered fair and reasonable. In terms of "completeness", the Government will focus on whether the price appears to cover all of the work identified in the PWS. The Government will focus on whether pricing is consistent with historical contract information and market research.

(d) The offeror shall submit its price proposal using Attachment 1 - Pricing Table. Travel has already been factored based on prior year executions. The base year will be $17,800 and Option years (1) one through four (4) will be set at $35,000. Service Contractor Reporting (CLINS X003) will be separately priced.

(c) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(d) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.
(End of provision)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS--COMMERCIAL ITEMS (JAN 2021)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(6) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items: (Contracting Officer check as appropriate.)

X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (Oct 1995) (41 U.S.C. 4704 and 10 U.S.C. 2402).

(2) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509).

____ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (5) [Reserved]

____ (6) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

____ (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (JUN 2020) (31 U.S.C. 6101 note).

X (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

____ (10) [Reserved]

____ (11)(i) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (MAR 2020) (15 U.S.C. 657a).

____ (ii) Alternate I (MAR 2020) of 52.219-3.

____ (12) (i) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (MAR 2020) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

____ (ii) Alternate I (MAR 2020) of 52.219-4.

____ (13) [Reserved]

X (14)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-6.

____ (15)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-7.

X (16) 52.219-8, Utilization of Small Business Concerns (OCT 2018) (15 U.S.C. 637(d)(2) and (3)).

____ (17)(i) 52.219-9, Small Business Subcontracting Plan (JUN 2020) (15 U.S.C. 637(d)(4)).

____ (ii) Alternate I (NOV 2016) of 52.219-9.

____ (iii) Alternate II (NOV 2016) of 52.219-9.

____ (iv) Alternate III (JUN 2020) of 52.219-9.

____ (v) Alternate IV (JUN 2020) of 52.219-9.

____ (18) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

____ (ii) Alternate I (MAR 2020) of 52.219-13.

X (19) 52.219-14, Limitations on Subcontracting (MAR 2020) (15 U.S.C. 637(a)(14)).

____ (20) 52.219-16, Liquidated Damages—Subcontracting Plan (Jan 1999) (15 U.S.C. 637(d)(4)(F)(i)).

____ (21) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (MAR 2020) (15 U.S.C. 657f).

X (22) (i) 52.219-28, Post Award Small Business Program Rerepresentation (NOV 2020) (15 U.S.C. 632(a)(2)).

____ (ii) Alternate I (MAR 2020) of 52.219-28.

____ (23) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business (EDWOSB) Concerns (MAR 2020) (15 U.S.C. 637(m)).

____ (24) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (MAR 2020) (15 U.S.C. 637(m)).

____ (25) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

____ (26) 52.219-33, Nonmanufacturer Rule (MAR 2020) (15 U.S.C. 637(a)(17)).

X (27) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

X(28) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (JAN 2020) (E.O. 13126).

X (29) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

X (30)(i) 52.222-26, Equal Opportunity (SEPT 2016) (E.O. 11246).

____ (ii) Alternate I (FEB 1999) of 52.222-26.

X (31)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

____ (ii) Alternate I (JUL 2014) of 52.222-35.

X (32)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

____ (ii) Alternate I (JUL 2014) of 52.222-36.

X (33) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

X (34) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

X (35)(i) 52.222-50, Combating Trafficking in Persons (OCT 2020) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

X (36) 52.222-54, Employment Eligibility Verification (OCT 2015). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in 22.1803.)

X (37)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (38) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (JUN 2016) (E.O. 13693).

____ (39) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).

X (40) (i) 52.223-13, Acquisition of EPEAT® Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (OCT 2015) of 52.223-13.

_____ (41)(i) 52.223-14, Acquisition of EPEAT® Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (JUN 2014) of 52.223-14.

____ (42) 52.223-15, Energy Efficiency in Energy-Consuming Products (MAY 2020) (42 U.S.C. 8259b).

____ (43)(i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).

____ (ii) Alternate I (JUN 2014) of 52.223-16.

X (44) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).

____ (45) 52.223-20, Aerosols (JUN 2016) (E.O. 13693).

____ (46) 52.223-21, Foams (JUN 2016) (E.O. 13693).

X (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

____ (48) 52.225-1, Buy American--Supplies (JAN 2021) (41 U.S.C. chapter 83).

____ (49) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (JAN 2021) (41 U.S.C. chapter 83, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

____ (ii) Alternate I (JAN 2021) of 52.225-3.

____ (iii) Alternate II (JAN 2021) of 52.225-3.

____ (iv) Alternate III (JAN 2021) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (OCT 2019) 19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

____ (51) 52.225-13, Restrictions on Certain Foreign Purchases (JUN 2008) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

X (55) 52.229-12, Tax on Certain Foreign Procurements (JUN 2020).

____ (56) 52.232-29, Terms for Financing of Purchases of Commercial Items (FEB 2002) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

____ (57) 52.232-30, Installment Payments for Commercial Items (JAN 2017) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

X (58) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

____ (59) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (60) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

X (61) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

____ (62) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

____ (63)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (FEB 2006) (46 U.S.C. Appx. 1241(b) and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (FEB 2006) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items: (Contracting Officer check as appropriate.)

X (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

X (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

_____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

X (7) 52.222-55, Minimum Wages Under Executive Order 13658 (NOV 2020) (E.O. 13658).

X (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

_____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes

clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1)in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(iv) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(vi) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(vii) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (Aug 2018), (41 U.S.C. chapter 67).

(xiii) _____ (A) 52.222-50, Combating Trafficking in Persons (OCT 2020) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (March 2, 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67.)

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67)

(xvi) 52.222-54, Employment Eligibility Verification (Oct 2015) (E. O. 12989).

X (xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (NOV 2020) (E.O. 13658).

(xviii) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2017) (E.O. 13706).

(xix) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **15 days**.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **5 days** (insert the period of time within which the Contracting Officer may exercise the option); provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **15 days** (60 days unless a different number of days is inserted) before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **5 years**.

(End of clause)

52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

THIS STATEMENT IS FOR INFORMATION ONLY: IT IS NOT A WAGE DETERMINATION
Employee Class Monetary Wage-Fringe Benefits

Job Title	Equivalent SCA Job Title	Wage Determination Link (WD# 2015-5032)
*Nurse Case Manager	Registered Nurse I	https://beta.sam.gov/search?index=wd
Care Coordinator	Document Preparation Clerk	
Medical Records Inventory Manager	Document Preparation Clerk	
Assistant Medical Records Inventory Manager	Personnel Assistant I	
Medical Boards Contractor	Personnel Assistant I	
Line of Duty Contractor	Personnel Assistant I	

In accordance with 29 CFR Part 541.301, Registered nurses who are registered by the appropriate State examining board generally meet the duties requirements for the learned profession exemption and are exempt from the Service Contract Act (SCA). However, licensed practical nurses and other similar health care employees, however, generally do not qualify as exempt learned professionals because possession of a specialized advanced academic degree is not a standard prerequisite for entry into such occupations.
(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://acquisition.gov/browse/index/far
_____
_____
_____
[*Insert one or more Internet addresses*]

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

252.219-7009 SECTION 8(A) DIRECT AWARD (OCT 2018)

(a) This contract is issued as a direct award between the contracting office and the 8(a) Contractor pursuant to the Partnership Agreement between the Small Business Administration (SBA) and the Department of Defense. Accordingly, the SBA, even if not identified in Section A of this contract, is the prime contractor and retains responsibility for 8(a) certification, for 8(a) eligibility determinations and related issues, and for providing counseling and assistance to the 8(a) Contractor under the 8(a) Program. The cognizant SBA district office is:
(To be completed by the Contracting Officer at the time of award)

(b) The contracting office is responsible for administering the contract and for taking any action on behalf of the Government under the terms and conditions of the contract; provided that the contracting office shall give advance notice to the SBA before it issues a final notice terminating performance, either in whole or in part, under the contract. The contracting office also shall coordinate with the SBA prior to processing any novation agreement. The contracting office may assign contract administration functions to a contract administration office.

(c) The 8(a) Contractor agrees that it will notify the Contracting Officer, simultaneous with its notification to the SBA (as required by SBA's 8(a) regulations at 13 CFR 124.515), when the owner or owners upon whom 8(a) eligibility is based plan to relinquish ownership or control of the concern. Consistent with section 407 of Public Law 100-656, transfer of ownership or control shall result in termination of the contract for convenience, unless the SBA waives the requirement for termination prior to the actual relinquishing of ownership and control.

(End of Clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018)

(a) Definitions. As used in this clause—

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice and Receiving Report (2-in-1)

Destination/Destination

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial item financing, submit a commercial item financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	HQ0670

Issue By DoDAAC	W91SMC
Admin DoDAAC**	W91SMC
Inspect By DoDAAC	W91SMC
Ship To Code	W56ESR
Ship From Code	____
Mark For Code	____
Service Approver (DoDAAC)	W91SMC
Service Acceptor (DoDAAC)	W91SMC
Accept at Other DoDAAC	____
LPO DoDAAC	HQ0670
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Jennifer.l.welker5.mil@mail.mil@mail.mil
nathaniel.l.wallace4.mil@mail.mil
Ng.il.ilarng.list.j8-vendor-pay@mail.mil

(2) Contact the **WAWF helpdesk at 866-618-5988**, if assistance is needed.

(End of clause)